

25STCV11542 25STCV11542

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-29

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Case Number: 25STCV11542 Hearing Date: July 29, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Mases Nazarian

;

Plaintiff,

vs.

Luis Mendez

;

Defendant.

Case No.:

25STCV11542

Hearing Date:

July 29, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Quash Service of Summons

MOVING PARTY: Specially appearing defendant Luis
Mendez

RESPONDING
PARTY: No response.

Motion to Quash
Service of Summons

The court considered the moving papers
filed in connection with this motion. No opposition was filed.

DISCUSSION

Specially
appearing defendant Luis Mendez ("Defendant") moves the court for an order
quashing service of the summons and complaint in this action, filed by
plaintiff Mases Nazarian ("Plaintiff").

"A defendant, on
or before the last day of his or her time to plead or within any further time
that the court may for good cause allow, may serve and file a notice of motion
for one or more of
the following purposes: [¶] (1) To quash service of summons on the ground of
lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).) [¶] "[A] motion to quash under
section 418.10, subdivision (a)(1) is a limited procedural tool to contest
personal jurisdiction over the defendant where the statutory requirements for
service of process are not fulfilled." (Stancil v. Superior Court (2021))

Plaintiff filed,
on February 17, 2024, proof of service of the summons, complaint, and case management documents on Defendant. The proof of service (1) states that Defendant was served by substituted service on January 14, 2026, at 4:41 p.m., at his putative home address 1360 Foxdale Loop, Apt. 609, San Jose, California, by leaving the documents in the presence of Luis Mendoza, and (2) was signed by a registered California process server on January 15, 2026. (POS-010, ¶¶ 3-5, 7.)

Because the proof of service was completed by a registered process server, there is a presumption affecting the burden of producing evidence of the facts stated in the proof of service. (Evid. Code, § 647; American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.) The court finds that Defendant's declaration is sufficient to rebut the presumption of the facts stated in the proof of service. Defendant categorically denies that the Foxdale Loop address is or has ever been his home address, usual mailing address, or usual place of residence or business. (Mendez Decl. ¶¶ 2-3.) Defendant also categorically denies ever having seen the summons and complaint. (Mendez Decl. ¶ 5.)

For the reasons stated above, the court grants Defendant's motion.

ORDER

The court GRANTS specially appearing defendant Luis Mendez's motion to quash service of summons.

The court orders that service of summons on specially appearing defendant Luis Mendez is quashed.

The court orders specially appearing defendant Luis Mendez to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 29, 2026

Robert B. Broadbelt III

Judge of the Superior Court